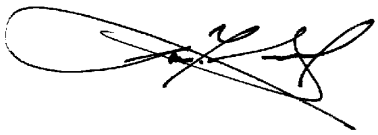
UNITED STATES POSTAL SERVICE®

Management Instruction

Alcohol and Drug Testing of Employees with a Commercial Driver's License (CDL)

This management instruction (MI) outlines Postal Service™ policies enacted to comply with the Omnibus Transportation Employee Testing Act of 1991 and establishes procedures for implementing U.S. Department of Transportation (DOT) alcohol and drug screening regulations.

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Jordan M. Small
Vice President
Network Operations

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Background

The Omnibus Transportation Employee Act of 1991 authorized the DOT to mandate substance abuse management for safety-sensitive employees in the transit industry. In February 1994, the DOT first published drug and alcohol testing regulations for employers of 50 or more safety-sensitive employees. For the purpose of this MI, a safety-sensitive employee is one who holds a Commercial Driver's License (CDL) and operates a vehicle with a Gross Vehicle Weight Rating (GVWR) greater than 26,000 pounds.

Employers of safety-sensitive employees are responsible for implementing and conducting alcohol and drug testing programs. They may do this by using their own employees, by using contract services, or by using a qualified service agent (i.e., a consortium/third-party administrator — C/TPA) who provides or coordinates one or more alcohol and/or drug testing services to DOT-regulated employers. Law enforcement officers do not conduct these tests as part of roadside or other inspections. However, under certain circumstances, post-accident tests conducted by law enforcement are acceptable. Any individual who conducts the testing must be trained to operate an approved evidential breath testing (EBT) device and to be proficient in the breath testing procedures. The Postal Service's national medical director will administer the DOT alcohol and drug testing program for the Postal Service.

The DOT publishes regulations under Title 49, *Code of Federal Regulations* (CFR), Part 40 (commonly referred to as Part 40), describing required procedures for conducting workplace alcohol and drug testing for the federally regulated transportation industry, which includes the Postal Service. The Office of Drug and Alcohol Policy and Compliance (ODAPC) publishes, implements, and provides authoritative interpretations of Part 40 alcohol and drug testing rules. This management instruction is not intended to supersede current information available on the DOT website at www.dot.gov/ost/dapc.

Scope

The DOT alcohol and drug policy regulations apply to approximately 10,000 Postal Service employees who operate commercial motor vehicles (vehicles in excess of 26,000 GVWR) during the performance of their jobs. To operate a commercial motor vehicle, a driver must possess a valid state CDL. Postal Service employees who are required to maintain a CDL as part of their responsibilities are covered by the Omnibus Transportation Testing Act and related motor carrier regulations for safety-sensitive functions. This group primarily includes motor vehicle operators and tractor trailer operators. Certain vehicle and plant maintenance mechanics and a small number of city carriers, clerks, and mail handlers may also be covered under the Act.

The Federal Motor Carrier Safety Act (FMCSA) 49 CFR part 382.107 defines safety-sensitive functions and the times when an operator is covered under the Act. As stated in 49 CFR 382.107, "Safety-sensitive function means all time from the time a driver begins to work or is required to be in readiness to work until the time he/she is relieved from work and all responsibility for performing work." Safety-sensitive functions include the following:

1. All time at an employer facility, or other property, waiting to be dispatched, unless the driver has been relieved from duty by the employer;
2. All time inspecting equipment prior to driving or otherwise inspecting, servicing, or conditioning any commercial motor vehicle at any time;
3. All time spent at the driving controls of a commercial motor vehicle in operation;
4. All time, other than driving time, in or upon any commercial motor vehicle;
5. All time loading or unloading a vehicle, supervising, assisting in the loading or unloading, attending a vehicle being loaded or unloaded, remaining in readiness to operate the vehicle, or in giving or receiving receipts for shipments loaded or unloaded; and
6. All time repairing, obtaining assistance, or remaining in attendance upon a disabled vehicle.

Prohibitions on Alcohol/Drug Use and Possession

DOT regulations state that covered employees must not use or possess alcohol or any illicit drug while assigned to or actually performing safety-sensitive functions. No covered employee shall report for duty or remain on duty while having an alcohol concentration of 0.02 BAC (blood-alcohol concentration) or greater. In addition, no management official having knowledge that a covered employee has a BAC of 0.02 or greater shall permit the covered employee to perform any safety-sensitive functions.

The regulations prohibit a covered employee from using alcohol within 4 hours of reporting for duty or after receiving notice to report. A driver may not use alcohol within 8 hours following an accident, or until the driver takes an alcohol test, whichever comes first. The use of overtime is authorized to ensure testing compliance if necessary.

A covered employee may not report for or remain on duty in a position requiring the performance of safety-sensitive functions when the employee uses any controlled substance, except when he/she is under a doctor's care and the doctor advises the employee in writing that the prescribed substance does not adversely affect the driver's ability to safely operate a commercial motor vehicle. This documentation must be retained in the driver's medical folder for 5 years.

Required Testing and Implementation Procedures

Pre-employment Testing

Pre-employment testing is normally confined to drug testing and is conducted before applicants are hired or after an offer to hire, but always before the employee actually performs safety-sensitive functions for the first time. As a condition of employment, the Postal Service will require the applicant to take a pre-employment drug test as part of the overall personal suitability determination and a DOT drug screen at the time of the pre-employment physical. Testing at this time will be handled by the local personnel office as part of the hiring procedure.

The Postal Service must also obtain, pursuant to a driver's written consent, information on the driver's positive alcohol or drug tests and refusals to be tested within the prior 2 years. The local personnel office will issue a release of information form to the applicant for signature. This form will be sent to the previous employer(s) and returned to the medical review officer (MRO). Only applicants who have been determined as "free of controlled substances" are eligible for selection consideration.

The following information will be requested on the information form:

1. Alcohol tests with a result of 0.04 or higher alcohol concentration.
2. Verified positive drug tests.
3. Refusals to be tested (including verified adulterated or substituted drug test results).
4. Other violations of DOT agency drug and alcohol testing regulations.
5. With respect to any employee who violated a DOT drug and alcohol regulation, documentation of the employee's successful completion of DOT return-to-duty requirements (including follow-up tests). If the previous employer does not have information about the return-do-duty process (e.g., an employer who did not hire an employee who tested positive on a pre-employment test), you must seek to obtain this information from the employee.

Transferring Positions

Drug testing is always required when an employee transfers from a non-safety-sensitive position to a safety-sensitive position.

Post-employment Testing

DOT regulations require alcohol and drug testing in the areas of post-accident, reasonable suspicion, random, and return-to-duty and follow-up testing according to the following guidelines.

Post-accident

As soon as practicable following an accident involving a Postal Service commercial motor vehicle, the driver of the vehicle shall be tested if any one of the following conditions are met:

1. The accident involved a fatality.
2. The driver received a citation under state or local law for a moving violation arising from the accident, and the accident involved an injury requiring treatment away from the scene.
3. The driver received a citation under state or local law for a moving violation arising from the accident, and the accident involved the towing of any vehicle.

If any one of the conditions listed in items 1 through 3 occurs, the supervisor shall immediately require the driver to report to the designated medical testing facility for an alcohol and drug test. The employee may be escorted to the testing site if conditions warrant (see Appendix A).

Reasonable Suspicion

Reasonable suspicion alcohol and drug testing is conducted when a trained management official observes that the behavior or the appearance of a safety-sensitive employee is characteristic of and consistent with alcohol and/or drug usage. Management will use the Reasonable Suspicion Testing Checklist (see Appendix B) as an aid in determining if reasonable suspicion testing is justified.

Note: If testing is warranted, immediately escort the employee to the designated medical testing facility. This action will ensure the safety of the employee, all coworkers, and the general public.

Random Testing for Alcohol

Employees are randomly selected for testing from a "pool" of all employees subject to testing. The testing dates and times are unannounced and are with unpredictable frequency throughout the year. Each year, the number of random tests will equal at least 10 percent of all safety-sensitive employees (see Appendix I).

Random Testing for Drugs

Employees are randomly selected for testing from a "pool" of all employees subject to testing. The testing dates and times are unannounced and are with unpredictable frequency throughout the year. Each year, the number of random tests will equal at least 50 percent of all safety-sensitive employees (see Appendix I).

This MI recognizes that there may be adjustments to the annual random testing rate for alcohol and drugs in future years based on industry-wide violations as determined by the Federal Highway Administration (FHWA).

Return-to-Duty and Follow-Up Testing

Return-to-duty and follow-up testing are conducted and/or overseen by the district occupational health nurse administrator (OHNA) when an individual who performs safety-sensitive duties has violated the prohibited alcohol and/or drug standards and returns to duty. The substance abuse professional (SAP) is the only one who can mandate follow-up testing. As of July 2009, direct observation collections are mandatory for all return-to-duty and follow-up testing.

Return-to-duty testing resulting in a negative test is one of the requirements for returning to duty following a positive alcohol or drug test. Follow-up testing is required in both instances to monitor the driver's continued abstinence from alcohol and/or drug use. Follow-up tests are unannounced, and at least six tests must be conducted in the first 12 months after an employee returns to safety-sensitive duties. Following the first 12 months after return-to-duty, follow-up testing may be extended for an additional 48 months (for a total of up to 60 months).

Alcohol and Drug Testing Procedures

Alcohol Testing

DOT regulations require breath testing using evidential breath testing (EBT) devices approved by the National Highway Traffic Safety Administration (NHTSA). The NHTSA periodically publishes a list of approved devices in the *Federal Register*. Two breath tests are required to determine if a person has a prohibited alcohol concentration. A screening test is conducted first. This test can be administered by a screen test technician (SST) or a breath alcohol technician (BAT). Any result less than 0.02 alcohol concentration is considered a "negative" test. If the alcohol concentration is 0.02 or greater, a BAT must conduct a second confirmation test. The covered employee and the BAT complete the alcohol testing form to ensure that the results are properly recorded. The confirmation test, if required, must be conducted using an EBT that prints out the results, date, time, a sequential test number, and the name and serial number of the EBT. The confirmation test results determine any actions taken.

Drug Testing

Drug testing is conducted by analyzing an employee's urine specimen. The analysis is performed at laboratories certified and monitored by the Department of Health and Human Services (DHHS). The employee provides a urine specimen in a location that affords privacy. Medical personnel (Postal Service employees or contract services) seal and label the specimen, complete a chain-of-custody document, and prepare the specimen and accompanying paperwork for shipment to a

drug testing laboratory. The specimen-collection procedures and chain-of-custody document ensure that the specimen's security, proper identification, and integrity are not compromised. The Omnibus Act requires that drug testing procedures for commercial motor vehicle drivers include split specimen procedures. Each urine specimen is subdivided into two bottles labeled as a "primary" and a "split" specimen. Both bottles are sent to the laboratory. The primary specimen is used for the initial urinalysis. The split specimen bottle remains sealed and is stored at the laboratory. If the analysis of the primary specimen confirms the presence of illegal controlled substances, the employee has 72 hours to request the split specimen be sent to another DHHS certified laboratory for analysis. This split specimen procedure essentially provides the employee an opportunity for a "second opinion." The Postal Service must provide to collectors the name and telephone number of the appropriate designated employee representative (DER) (and/or C/TPA, where applicable) to contact about any problems or issues that may arise during the testing process.

SAP Evaluation Required

An employee who has violated DOT alcohol and drug regulations cannot again perform any safety-sensitive duties for the Postal Service until he/she completes the SAP evaluation, referral, and education/ treatment process. Violations of DOT regulations include the following:

1. A verified positive DOT drug test result.
2. A DOT alcohol test with a result indicating an alcohol concentration of 0.04 or greater.
3. Refusal to test (including by adulterating or substituting a urine specimen)

For an employee (including an applicant or new employee) who violates a DOT drug and alcohol regulation, the Postal Service will provide at no cost a listing of SAPs readily available to the employee and acceptable to the agency, with names, addresses, and telephone numbers. A SAP evaluation is the first step in the process of returning to safety-sensitive Postal Service duties.

Evaluations for Violation of the Rules

Alcohol

Under the law and implementing regulations, a covered employee who violates alcohol prohibitions must be immediately removed from safety-sensitive functions. The employee may be temporarily reassigned to available non-driving duties in the employee's craft or in other crafts, consistent with the terms of the collective bargaining agreement. A covered employee who has a positive alcohol test equal to or greater than 0.04 BAC cannot return to safety-sensitive duties until he/she has been evaluated by a SAP, has complied with any recommended treatment, has passed a SAP re-evaluation, has passed an evaluation by the MRO, and has passed a return-to-duty alcohol test. The Postal Service incurs the cost for the initial SAP evaluation. Follow-up alcohol

testing to monitor the employee's abstinence from alcohol use will be required. A covered employee who has any alcohol concentration (defined as 0.02–0.039) when tested just before, during, or just after performing safety-sensitive functions must also be removed from performing such duties for 24 hours. The employee may return to duty at the beginning of his/her next shift after the 24 hours have elapsed. Before beginning the next work shift after the 24 hours have elapsed, the employee must pass an alcohol test (defined as less than 0.02 BAC). If the employee is referred for a SAP evaluation, the employee must give permission to the MRO for the release of alcohol test results to the SAP. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement (see Appendices A, B, C, and D).

Drugs/Controlled Substances

As with an alcohol misuse violation, a covered employee must be removed from safety-sensitive duty if he/she has a positive drug test result. The employee may be temporarily reassigned to available non-driving duties in the employee's craft or in other crafts, consistent with the terms of the collective bargaining agreement. An employee cannot return to safety-sensitive duties until he/she has been evaluated by a SAP and the MRO, has complied with recommended rehabilitation, and has a negative result on a return-to-duty drug test. The Postal Service incurs the cost for the initial SAP evaluation. Follow-up drug testing to monitor the employee's continued abstinence from drug use will be required. If the employee is referred for a SAP evaluation, the employee must give permission to the MRO for the release of the drug testing results to the SAP. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement (see Appendices E and F).

Notices

Notification of Testing

Before performing an alcohol or drug test, the Postal Service must notify the driver in writing that the test is being conducted under FHWA regulations. The random selection document generated by the random testing contractor will serve as the required notice.

Notification of Positive Tests

Employees are to be notified of positive tests as follows:

1. A positive alcohol test equal to or greater than 0.02 BAC but less than 0.04 BAC (see Appendix C).
2. A positive alcohol test equal to or greater than 0.04 BAC (see Appendix D).
3. A notification of a positive drug test following random testing (see Appendix E).
4. A notification of a positive drug test following reasonable suspicion or post-accident testing (see Appendix F).

Actions Following Notification

For more information on actions to take after notifying employees, see the following appendices:

1. Guidelines — Employees incapacitated while on duty (see Appendix G).
2. Sample letter for placing an employee on emergency off-duty status (see Appendix H).

Recordkeeping

Retention/Storage

DOT alcohol and drug testing rules require that employers (or other contracted designees) retain and store certain records on their testing programs.

1. Retain the following records for 5 years:
    a. Records of alcohol tests resulting in a concentration of 0.02 or greater.
    b. Records of verified positive drug test results.
    c. Documentation of refusals to take required alcohol and/or drug tests.
    d. Documentation of substituted or adulterated drug test results.
    e. SAP reports and all follow-up tests and schedules for follow-up tests.
2. Retain records obtained from previous employers concerning alcohol and drug test results of employees for 3 years.
3. Retain records of the inspection, maintenance, and calibration of EBTs for 2 years.
4. Retain records of negative and cancelled drug test results and alcohol test results with a concentration of less than 0.02 for 1 year.
5. Maintain records in a controlled access location.
6. Have records available for DOT inspection within 2 business days of notification.

Annual Summary

The FHWA might require the Postal Service to submit a summary of the results of alcohol and drug testing performed during the previous calendar year. In such cases, the FHWA will notify the Postal Service of this requirement in January, and the Postal Service must submit the summary to the FHWA by March 15. The summary of results will generally include the following information:

1. The number and types of tests conducted.
2. The number of drivers subject to testing.
3. The number of positive and negative results.

4. The number of applicants rejected for failing an alcohol or drug test.
5. The number of refusals to submit to tests.
6. The number of supervisors who received alcohol or controlled-substances training.
7. The number of drivers who were returned to duty after a prior violation of the drug or alcohol rules.

Release of Information

The Postal Service may not release information on a driver's testing record to any other party without written permission from the driver.

Training and Education

The DOT mandates that all employers provide to all drivers educational materials that explain the alcohol and drug testing requirements and the employer's policies and procedures with respect to meeting those requirements. These materials must include the following information:

1. The identity of the person designated by the employer to answer questions about the materials.
2. The categories of employees subject to these regulations and a description of safety-sensitive functions and prohibited driver conduct.
3. The circumstances under which alcohol and drug testing will be conducted and the testing procedures.
4. The consequences of failing or refusing to take a test.
5. Information on the effects of alcohol and drug use on an individual's health, work, and personal life and on methods of intervening when a problem is suspected.

Postal Service educational materials also contain information on disciplinary procedures for the possession and use of alcohol or drugs.

All supervisors designated as those who determine reasonable suspicion for purposes of requiring an alcohol or drug test must undergo at least 1 hour of training on alcohol misuse and at least 1 additional hour of training on drug use. This training must cover the physical, behavioral, speech, and performance indicators of controlled substance use and will normally be performed by the district OHNA.

Appendix A
Post-Accident Alcohol and Drug Test

Note: This checklist applies only to Postal Service drivers who operate commercial motor vehicles in the performance of duty.

First of all, determine if the driver or anyone else involved in the accident needs medical attention and satisfy yourself that medical assistance has been requested.

Next, determine if a DOT post-accident alcohol and drug test must be performed by completing the following:

STEP 1

a. Did the accident involve a fatality?

❑ Yes ❑ No

b. Did the driver receive a citation under state or local law for a moving violation arising from the accident whereby an injury to anyone involved in the accident required treatment away from the scene?

❑ Yes ❑ No

c. Did the driver receive a citation under state or local law for a moving violation arising from the accident whereby an involved vehicle was towed away from the scene?

❑ Yes ❑ No

If you answered "Yes" to either a, b, or c above, you must conduct a DOT post-accident alcohol and drug test. If you answered "No" to all of the above, you do not need to conduct a test. Indicate your decision below.

❑ Test Required ❑ No Test Required (Go to Step 3.)

STEP 2

Determine if state or local law enforcement has been notified. Further establish what determination has been made by state or local law enforcement regarding the disposition of the accident (e.g., moving violation citation).

If law enforcement has been notified and medical assistance for the Postal Service driver, if any, has been requested and provided, the next steps are:

a. ❑ Advise the driver not to consume any alcohol for the next eight hours or until after testing is completed.

b. ❑ Advise the driver that under normal circumstances, he/she must report for an alcohol and drug test as soon as possible, but not later than 2 hours from notification.

c. ❑ Advise the employee of the location of the nearest alcohol and drug testing facility. (Have the driver escorted to the testing facility if conditions warrant.)

STEP 3

Complete this checklist report, make comments as necessary, and file it.

Accident Date _____ Driver's Name_____

Reporting Office _____ Name of Official Completing This Form _____

Appendix B
Reasonable Suspicion Testing Checklist

Use the following checklist to document any situation that you believe is caused by alcohol or other drugs.

Remember, you do not need to be absolutely certain that alcohol or drugs are involved. If you think there is a reasonable chance of alcohol or drug involvement, you must refer the employee for a reasonable suspicion test.

Name of Employee Observed: _____ Date Observed: _____

Location of Observation(s): _____ Time of Observation(s) _____

1. **Must order a reasonable suspicion test if one of the following is observed during the course of duty.**
   - ❑ I smelled an odor consistent with alcoholic beverages on the covered employee.
   - ❑ The covered employee was sleeping on the job.
   - ❑ The covered employee struck another person.
   - ❑ The covered employee struck company equipment/vehicle with an object (e.g., stick, wrench), or intentionally damaged or destroyed company equipment/vehicle.
   - ❑ The covered employee was driving a vehicle or operating machinery erratically (e.g., weaving, speeding, hitting objects with the vehicle, not following safety rules, etc.).
   - ❑ The covered employee swayed back and forth when standing still; had to catch his/her balance repeatedly.
   - ❑ The covered employee weaved or had to continually catch balance when walking.
   - ❑ Other (please specify) _____

2. **Must order a reasonable suspicion test if two or more of the following are observed during the course of duty.**
   - ❑ The covered employee refused to respond when spoken to.
   - ❑ The covered employee yelled at people for no reason.
   - ❑ The covered employee was constantly arguing with coworkers.
   - ❑ The covered employee made persistent errors on the job (describe in comment section below).
   - ❑ Other (please specify) _____

Comments: What did you see? Be specific and descriptive.

_____

_____

_____

_____

_____

Appendix B continued on following page.

Appendix B
Reasonable Suspicion Testing Checklist (continued)

Use the following checklist to document your actions where the use of alcohol or other drugs may have affected the performance of any individual performing a safety-sensitive task or may have affected the safety of the workplace. Indicate in the check box that you have completed each step, as applicable.

1. ❑ Notify your manager that you are directing an employee to have a reasonable suspicion alcohol and/or drug test. Do not delay the test if you cannot reach your manager.
2. ❑ Inform the employee that he/she is to report to the medical unit (or contract medical site) for reasonable suspicion alcohol and drug testing. Have the employee escorted to the designated testing site.

At the testing site:

3. ❑ Record date and time of arrival at specimen collection site.

   Date: _____ Time: _____
4. ❑ Request a reasonable suspicion test for alcohol and/or drugs if the suspicious conduct occurred just prior to, during, or after the employee was performing safety-sensitive work.
5. ❑ If the employee refused to submit to testing, he/she is regarded as having tested positive and action is taken according to procedures described in Appendix D or F. Remind the employee that refusal to go for an alcohol and/or drug test will result in immediate removal from the safety-sensitive job (DOT requirement) and subject him/her to discipline for failure to obey a lawful directive. Indicate here if the employee refused to take the reasonable suspicion test.

   ❑ Refused
6. ❑ Whether the employee takes the test or not, ensure that the employee is taken to a safe place until he/she is cleared by the medical review officer (MRO) or is taken home in accordance with guidelines for dealing with employees incapacitated while on duty (see Appendix G).
7. ❑ Complete this checklist, file a copy in your confidential records, and send the original to your manager.
8. ❑ Statement: I have received required DOT drug and alcohol testing supervisory training as required by federal regulations.

   Signature: _____

   Name: _____ Date: _____

In the instance of item 4 above, if the employee tests positive for alcohol, follow Appendix C or D as appropriate. If the employee tests negative for alcohol, the employee should be placed in a non-duty status, without pay (see Article 16.7 of the National Agreement), while waiting for the results of the drug test. The supervisor must send a letter to the employee confirming the action taken (see sample letter in Appendix H). The specimen must be sent by Express Mail for quick turnaround.

In the instance of item 5 above, the employee should be placed in a non-duty status, without pay (see Article 16.7 of the National Agreement), while waiting for the results of the drug test. The supervisor must send a letter to the employee confirming the action taken (see sample letter in Appendix H). The specimen must be sent by Express Mail for quick turnaround.

If the test is returned negative in both instances, the employee may return to duty and be made whole. If the test is returned positive, refer to Appendix F, Notification of a Positive Drug Test Following Reasonable Suspicion or Post-Accident Testing.

Appendix C

Notification of a Positive Alcohol Test at 0.02 BAC and Above But Less Than 0.04 BAC

The following procedures apply when notifying an employee of the results of a positive alcohol test at 0.02 BAC but less than 0.04 BAC.

1. The employee is notified of the test results by the breath alcohol technician (BAT).
2. The BAT instructs the employee to remain in the testing area pending the arrival of a person to escort the employee back to the work location.
3. The BAT immediately notifies the manager on duty of the test results and requests that a member of the managerial team, or security, come and escort the employee back to the duty area.
4. The supervisor arranges to have the employee escorted back to the work location by managerial personnel or security.
5. The supervisor should immediately inform the employee that he/she is placed in an "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement. This action is taken on the basis of a report of a positive alcohol test of 0.02–0.039 BAC from the BAT and the potential that the test result indicates possible impairment, based on recognized scientific studies, and because retaining the employee on duty may be injurious to self or others.
6. The employee will be advised that he/she may not perform any safety-sensitive duties for a period of at least 24 hours from the time of manager notification. The employee should be further notified that before the beginning of the next duty shift after the 24 hour period, the employee must pass an alcohol test. Failure to pass a return-to-duty alcohol test after the 24 hour period (continuing to test at 0.02 or above) will result in a mandatory referral to a substance abuse professional (SAP) for an evaluation.
7. The supervisor will encourage the employee to seek voluntary assistance from the SAP and will provide the employee with the telephone number of the SAP.
8. If the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
9. The supervisor must send a letter to the employee confirming the action taken in Paragraph 5 above. See sample letter in Appendix H.
10. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Appendix D
Notification of a Positive Alcohol Test at 0.04 BAC and Above

The following procedures apply when notifying an employee of the results of a positive alcohol test at 0.04 BAC and above:

1. The breath alcohol technician (BAT) notifies the employee of the test results.
2. The BAT instructs the employee to remain in the testing area pending the arrival of a person to escort the employee back to the work location.
3. The BAT immediately notifies the manager on duty of the test results and requests that members of the managerial team or security personnel come and escort the employee back to the duty area.
4. The manager arranges to have the employee escorted back to the work location by managerial or security personnel.
5. The supervisor immediately informs the employee that he/she is placed on "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement. This action is taken on the basis of a report of a positive alcohol test of 0.04 BAC or greater from the BAT and the potential that the test result indicates possible impairment, based on recognized scientific studies, and because retaining the employee on duty may be injurious to self or others.
6. If the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
7. The supervisor must send a letter to the employee confirming the action taken in step 5 above. See sample letter in Appendix H.
8. The supervisor notifies the employee by letter, of the need to report to a substance abuse professional (SAP) for evaluation. The supervisor provides the employee with the telephone number of the SAP for the employee to make the appointment. The supervisor indicates to the employee the following requirements for continuing employment in his or her current position:
    a. An evaluation by the SAP (the Postal Service pays for the initial evaluation) and successful completion of any recommended treatment or rehabilitation regimen.
    b. A SAP participation evaluation prior to return to duty.
    c. A medical certification by a medical review officer prior to return to duty, passing a return-to-duty alcohol test, and being placed in an unannounced follow-up testing program for a period of up to 60 months.
    d. If the employee declines a SAP evaluation or does not successfully complete all of the terms of the SAP recommended treatment and rehabilitation regimen, the supervisor will send the employee a letter that outlines the following options:
        1. The employee may request reassignment to an available non-driving position for which he/she is qualified.
        2. If the employee does not make such a request, or is not qualified for another position, the employee may resign.
9. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Appendix E
Notification of a Positive Drug Test Following Random Testing

The following procedures apply when notifying an employee of the results of a positive drug test following random testing:

1. Medical personnel will inform management that the employee must contact the medical review officer (MRO).
2. Management has the employee contact the MRO as soon as possible. The MRO informs the employee that he/she has tested positive for drugs and determines if there is a medical reason for the positive test. If there is a medical reason, the test counts as a negative test. If there is not a medical reason, the MRO informs the employee of the employee's right to appeal the drug test with a split specimen test. Under the law, employee notification of the drug test result will be in writing and the employee has 72 hours to request a split specimen test. The MRO has the employee sign a copy of the notification indicating the beginning time and date of the 72 hour notification. If the employee refuses to sign, the MRO notes that refusal on the form, completes the date and time information, and signs to verify the information was received by the employee. The split specimen test, if requested, will be paid for by the Postal Service. The MRO will have those employees who test positive sign a release form allowing the MRO to communicate the drug testing results and any subsequent drug testing to the substance abuse professional (SAP).
3. Management will immediately place the employee on "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement on the basis of a report of a positive drug test result from the MRO, and the MRO determination that the employee is unfit for duty because of the positive drug test. The employee is informed that he/she is placed in an "emergency off-duty status, without pay."
4. If the split specimen test returns positive, or if no split test is requested, management continues at step 5. If the split specimen test is returned negative, the employee is returned to duty immediately and made whole. The notice of placement letter is removed from the employee's file.
5. If, at any time, the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
6. Send a letter to the employee confirming the action taken in step 3 above. A sample letter is provided in Appendix H.
7. Following any necessary investigation, the supervisor will determine what additional action should be taken.
    a. Discipline, up to and including "last chance agreement" may be given in accordance with normal disciplinary procedures. The terms and conditions of the last chance agreement should be related and relevant to notification of a positive drug test following random testing. Supervisors should consult with Labor Relations on proposed disciplinary action.
    b. If offered, the employee must sign a "last chance agreement," which will include the following provisions:
        (1) The employee agrees to an evaluation by a SAP at the first available appointment.
        (2) The employee agrees to follow the treatment and rehabilitation recommendations of the SAP and understands that he/she must successfully complete the treatment and rehabilitation regimen.
        (3) The employee must pass a re-evaluation by the SAP, who will provide his/her recommendations to the MRO for approval.

Appendix E continued on following page.

Appendix E
Notification of a Positive Drug Test Following Random Testing (continued)

(4) The employee must pass a return-to-duty evaluation by the MRO.

(5) The employee must pass a return-to-duty drug test.

(6) The employee agrees to unannounced follow-up testing to be determined by the MRO and the SAP for a period not to exceed 60 months.

(7) The employee agrees that any positive drug test during the follow-up test period, including random, for cause, or post-accident tests, will be the basis for removal from the Postal Service.

8. If the employee declines to sign a "last chance agreement" or does not successfully complete all of the terms of the "last chance agreement," management should consider removing the employee from the Postal Service.
9. If the employee agrees to be evaluated by a SAP, the supervisor is responsible for providing the SAP telephone number to the employee.
10. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Appendix F
Notification of a Positive Drug Test Following Reasonable Suspicion or Post-Accident Testing

The following procedures apply when notifying an employee of the results of a positive drug test following reasonable suspicion or post-accident testing:

1. Medical personnel will inform management that the employee must contact the medical review officer (MRO).
2. Management has the employee contact the MRO as soon as possible. The MRO informs the employee that he/she has tested positive for drugs and determines if there is a medical reason for the positive test. If there is a medical reason, the test counts as a negative test. If there is not a medical reason, the MRO informs the employee of the employee's right to appeal the drug test with a split specimen test. Under the law, employee notification of the drug test result will be in writing and the employee has 72 hours to request a split specimen test. The MRO has the employee sign a copy of the notification indicating the beginning time and date of the 72 hour notification. If the employee refuses to sign, the MRO notes that refusal on the form, completes the date and time information, and signs to verify the information was received by the employee. The split specimen test, if requested, will be paid for by the Postal Service. The MRO will have those employees who test positive sign a release form allowing the MRO to communicate the drug test results and the results of any subsequent testing to the substance abuse professional (SAP).
3. Management will immediately place the employee on "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement on the basis of a report of a positive drug test result from the MRO and the MRO determination that the employee is unfit for duty because of the positive drug test. The employee is informed that he/she is placed in an "emergency off-duty status."
4. If the split specimen test returns positive, or if no split test is requested, management continues at step 7. If the split specimen test is returned negative, the employee is returned to duty immediately and made whole.
5. If, at any time, the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
6. Send a letter to the employee confirming the action taken in step 3 above. A sample letter is provided in Appendix H.
7. Following any necessary investigation, the supervisor will determine what additional action should be taken as follows:
    a. Discipline, up to and including last chance agreement may be given in accordance with normal disciplinary procedures administered in accordance with Article 16 of the National Agreement. Supervisors should consult with Labor Relations on proposed disciplinary action.
    b. If offered, the employee must sign a "last chance agreement," which will include the following provisions:
        1. The employee agrees to evaluation by a SAP at the first available appointment.
        2. The employee agrees to follow the treatment and rehabilitation recommendations of the SAP and understands that he/she must successfully complete the treatment and rehabilitation regimen.
        3. The employee must pass a re-evaluation by the SAP, who will provide his/her recommendations to the MRO for approval.

Appendix F continued on following page.

Appendix F
Notification of a Positive Drug Test Following Reasonable Suspicion or Post-Accident Testing (continued)

4. The employee must pass a return-to-duty evaluation by the MRO.
5. The employee must pass a return-to-duty drug test.
6. The employee agrees to unannounced follow-up testing to be determined by the MRO and the SAP for a period not to exceed 60 months.
7. The employee agrees that any positive drug test during the follow-up test period, including random, for cause, or post-accident tests, will be the basis for removal from the Postal Service.

8. If the employee declines to sign a "last chance agreement" or does not successfully complete all of the terms of the "last chance agreement," management should consider removing the employee from the Postal Service.
9. If the employee agrees to be evaluated by a SAP, the supervisor is responsible for providing the SAP telephone number to the employee.
10. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Appendix G
Employees Incapacitated While on Duty

The following procedures must be used to assist an employee who is incapacitated while on duty.

Included in this category are situations where employees may be ill, over-medicated, intoxicated, or otherwise unable to perform their assigned duties, either at the time they enter on duty or during the course of their assigned tour. The determination of incapacity must be made by the employee's supervisor or manager and documented for future reference. The supervisor should not attempt to diagnose the condition, but should merely document observed behavior. Based on the information provided in this document, the supervisor or manager should use one or more of the procedures outlined below:

1. If the situation appears to be life-threatening, call 911. Otherwise, immediately contact the medical personnel designated to respond to medical situations for your facility. This may be an on-site health unit or a contract clinic. If you are unsure who the designated medical personnel are, contact your district OHNA for information and assistance.
2. A family member or person listed as an emergency contact for the employee should be contacted to provide safe transport of the employee to either a medical facility or home.
3. If the employee refuses efforts to provide alternate transportation and attempts to drive his/her own vehicle while incapacitated, local law enforcement should be called.
4. In the event an employee becomes belligerent, Postal Service police, local security, or local law enforcement should be contacted.
5. Upon return to duty, the manager or supervisor should inquire if there is a legitimate medical explanation for the incapacitation and/or if the employee has made arrangements for medical care. If there is no reasonable medical basis given, the manager or supervisor should formally refer the employee to the Employee Assistance Program counselor for an initial appointment on the clock. The manager or supervisor has the option of requesting that the employee undergo a fitness-for-duty examination prior to the employee returning to duty.

Supervisors and managers should use discretion when implementing these guidelines so as not to seriously affect the security of the postal facility or the movement of mail.

Appendix H
Sample Letter for Placing an Employee on Emergency Off-Duty Status

Date: *[Insert date of letter]*

Subject: Emergency Placement in Off-Duty Status

To: *[Insert Employee's Name]*
[Insert Job Title]
[Insert Employee Identification Number]
[Insert Office/Installation]

You are hereby notified that you *[insert either "will be" or "were" as appropriate]* placed in an off-duty status without pay effective *[insert the appropriate date and time]* and will continue in this status until advised otherwise.

The *[insert either "reason" or "reasons" as appropriate]* for this action *[insert either "is" or "are" as appropriate]:*

[Briefly state the specific reason(s) for the placement in off-duty status — e.g., striking/threatening a fellow employee; use of, or testing positive for alcohol or drugs. Set forth the reason(s) with sufficient specificity and detail so that the employee is adequately able to respond. Use names, dates, times, etc., so that the employee may have a fair opportunity to refute the notice without requiring further information.]

Retaining you on duty may result in damage to Postal Service property, loss of mail or funds, or injury to yourself or others.

You have the right to file a grievance under the Grievance/Arbitration procedure set forth in Article 15 of the National Agreement within 14 days of your receipt of this notice.

_____
Signature of Supervisor

_____
Name of Supervisor (Printed)

Signature of Employee below denotes receipt of the original:

_____
Employee's Signature

_____
Date Time

Appendix I
Flowchart on Random Alcohol and Drug Testing Process

